

Produit : Electronic / Measuring devices

Legal manager : DLUBALA JULIEN

Updated at : 12/02/2026 11:25:24

Downloaded at : 27/03/2026 12:22:10

CANADA

Product's definition

Category

In which category the product is classified ?

"Consumer Product" under the Canada Consumer Product Safety Act

"Energy-using products" under the Energy Efficiency Act and Regulations (battery chargers and other electronic products, like 'compact audio products')

"Electrical equipment" under the Canadian Electrical Code and implementing legislation

"Dangerous goods" under the Transportation of Dangerous Goods Act (batteries)

"Radio equipment" under the Radiocommunications Act and Regulations

*Provincial Legislation for Energy-using Products - found in the 'Electrical/Measuring Devices - Chargers' subcategory

Quebec :

"cellular telephone" and "household appliance" under the Consumer Protection Act

Regulations Cited in this Card:

Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>

Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>

- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Transportation of Dangerous Goods Act, 1992, <https://laws-lois.justice.gc.ca/PDF/T-19.01.pdf>

- Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/R-2/index.html>
- Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

Quebec :

Consumer Protection Act, https://www.publicationsduquebec.gouv.qc.ca/fileadmin/Fichiers_client/lois_et_reglements/LoisAnnuelles/en/2023/2023C21A.PDF, (relevant amendment will come in force on 2026-10-05) as amended by An Act to protect consumers from planned obsolescence and to promote the durability, repairability and maintenance of goods, https://www.publicationsduquebec.gouv.qc.ca/fileadmin/Fichiers_client/lois_et_reglements/LoisAnnuelles/en/2023/2023C21A.PDF

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Consumer Product

"consumer product" means a product, including its components, parts or accessories, that may reasonably be expected to be obtained by an individual to be used for non-commercial purposes, including for domestic, recreational and sports purposes, and includes its packaging.

Electrical Equipment

Electrical equipment is defined as "any apparatus, appliance, device, fitting, fixture, luminaire, machinery, material, or thing used in or for, or capable of being used in or for, the generation, transformation, transmission, distribution, supply, or utilization of electric power or energy and, without restricting the generality of the foregoing, includes any assemblage or combination of materials or things that is used, or is capable of being used or adapted, to serve or perform any particular purpose or function when connected to an electrical installation, notwithstanding that any of such materials or things may be mechanical, metallic, or non-electric in origin".

Energy Using products

Means products that are prescribed by the Energy Efficiency Regulations. This includes 'compact audio products' under Division 9 of the Energy Efficiency Regulations.

A mobile phone might be subject to this regulation as a 'compact audio product' (defined as "an amplifier and terrestrial tuner encased in a single housing, with attached or separable speakers — including one that can produce sound from another media — that uses mains power as at least one means of power") or by having a battery charger.

Dangerous Goods

The Transportation of Dangerous Goods Act regulates products prescribed in the regulations. Under the regulations, certain types of batteries are regulated (e.g. lithium-ion batteries).

Radio Equipment under the Radiocommunications Act - a product is subject to this legislation if it meets one of the following definitions:

- Radio apparatus, defined as "a device or combination of devices intended for, or capable of being used for, radiocommunication";
- Interference-causing equipment, defined as "any device, machinery or equipment, other than radio apparatus, that causes or is capable of causing - interference to radiocommunication";
- Radio-sensitive equipment, defined as "any device, machinery or equipment, other than radio apparatus, the use or functioning of which is or can be adversely affected by radiocommunication emissions".

A mobile phone, or wireless device, meets these definitions and is regulated under this Act.

Along with General Federal Requirements, please consult the following:

- 'Electronic/Measuring Devices - Radio Equipment' subcategory for requirements related to the Radiocommunications Act.
- 'Electronic/Measuring Devices - Batteries, accumulators' subcategory for requirements related to the Transportation of Dangerous Goods Act
- 'Electronic/Measuring Devices - Chargers' subcategory for requirements related to consumer products, energy-using products, and electrical products.

Comments

Comments

Depending on the category or categories into which the mobile phones and tactile pads fall, they will be subject to one or more sets of requirements. First, there are requirements applicable to all Consumer products in Canada (referred to as “Consumer products”). Next, there are requirements applicable to all electrical equipment (referred to as “electrical equipment”). Next, there are requirements applicable to items subject to the Radiocommunication Regulations (referred to as “radio or interference-causing equipment”). Finally, there are requirements applicable to items subject to the Energy Efficiency Regulations (referred to here as “Items subject to the Energy Efficiency Regulations”).

Mobile phones and tactile pads will therefore be subject only to the requirements applicable to the category or categories into which they fall. For the requirements applicable to each of these categories of items, please refer to the “Electronic/Measuring Devices – Chargers” subcategory.

With regards to products subject to the Energy Efficiency Regulations at the provincial level, please note that in addition to the legislation provided in the “Electronic/Measuring Devices – Chargers” section, certain mobile phones and tactile pads could also be subject to the legislation.

* Please note, however, that more information regarding the nature, composition, etc. of each specific product would be necessary in order to make a determination as to which category the product falls under and which regulatory regimes apply to the product. Please note that additional regulatory and/or permit requirements may also apply depending on the product's composition, nature, etc.

Labelling

Language

[In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.](#)

Please see 'Electronic/Measuring Devices - Batteries, accumulators' subcategory for requirements related to the Transportation of Dangerous Goods Act

Mandatory labelling on product

What are the mandatory labelling on the product ?

Energy-using Products

NRCAN publishes guidance on the mandatory standards for energy-using products. Mobile phones may qualify as 'compact audio products,' 'video products,' 'battery chargers,' or perhaps a different product, depending on the properties of the product. This guidance states the relevant technical standard, as well as required labelling and reporting requirements.

Additional Regulations Cited:

NRCan, Guide to Canada's Energy Efficiency Regulations, <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/guide-canadas-energy-efficiency-regulations/6861>

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Along with General Federal Requirements, please consult the following:

- Please see 'Electronic/Measuring Devices - Radio Equipment' subcategory for requirements related to the Radiocommunications Act.
- 'Electronic/Measuring Devices - Batteries, accumulators' subcategory for requirements related to the Transportation of Dangerous Goods Act
- 'Electronic/Measuring Devices - Chargers' subcategory for requirements related to consumer products, energy-using products, and electrical products.

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ? In which format, do we have to deliver the instruction manual to our customers ?

Warnings - General ones

Are general warnings required ? If yes, which ones ?

Along with General Federal Requirements, please consult the following:

- Please see 'Electronic/Measuring Devices - Radio Equipment' subcategory for requirements related to the Radiocommunications Act.
- 'Electronic/Measuring Devices - Batteries, accumulators' subcategory for requirements related to the Transportation of Dangerous Goods Act
- 'Electronic/Measuring Devices - Chargers' subcategory for requirements related to consumer products, energy-using products, and electrical products.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Nil.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Nil.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Along with General Federal Requirements, please consult the following:

- 'Electronic/Measuring Devices - Radio Equipment' subcategory for requirements related to the Radiocommunications Act.
- 'Electronic/Measuring Devices - Batteries, accumulators' subcategory for requirements related to the Transportation of Dangerous Goods Act
- 'Electronic/Measuring Devices - Chargers' subcategory for requirements related to consumer products, energy-using products, and electrical products.

Comments

Comments

Nil.

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

Please refer to the “Electronic/measuring devices – Chargers” section of My Conformity Box for the applicable requirements.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Energy-using Products - Mobile Phones

NRCan publishes guidance on the mandatory standards for energy-using products. Mobile phones may qualify as 'compact audio products,' 'video products,' 'battery chargers,' or perhaps a different product, depending on the properties of the product. This guidance states the relevant technical standard, as well as required labelling and reporting requirements.

Health Canada has determined that the radiation emitted from wifi devices is generally not harmful. Health Canada has developed guidelines for safe human exposure to RF energy (Safety Code 6). It specifies the requirements for the safe use of radiation-emitting devices operating in the frequency range from 3 kilohertz (kHz) to 300 gigahertz (GHz). Wi-Fi operates in the 2.4 and 5.8 GHz frequency range

Quebec :

- the Consumer Protection Act, allows the government to establish technical and manufacturing standards for goods including standards for ensuring interoperability between goods and chargers.

Additional Regulations Cited:

NRCan, Guide to Canada's Energy Efficiency Regulations, <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/guide-canadas-energy-efficiency-regulations/6861>

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Electrical aspects

What are requirements regarding electrical aspects ?

Inflammability

Are there any specific requirements to ensure inflammability?

Hygiene

What are the rules regarding hygiene ?

Nil.

Radioactivity

What are the rules regarding radioactivity ?

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

Nil.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Comments

Comments

Nil.

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Comments

Comments

Nil.

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

Nil.

Comments

Comments

Nil.

Importation rules

General rules

What are the general rules in order to import the product ?

See 'Certification' section of 'Electronic/Measuring Devices' subcategory for information about obtaining a TAC prior to import.

Additional Regulations Cited:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>

Details on the certification process are provided in ISED's guide Certification of Radio Apparatus and Broadcasting Equipment, available at <https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/sf01130.html>

ISED Guidance Document - https://www.ic.gc.ca/eic/site/ceb-bhst.nsf/eng/h_tt00051.html

ISED Radio Equipment List - <https://sms-sgs.ic.gc.ca/equipmentSearch/searchRadioEquipments?execution=e1s1&lang=en>

Documents

What are the required documents ?

Time period

In which time period may we obtain the right to import ?

Administration

What is the administration in charge of importations ? Name and address ?

Comments

Comments

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

Nil.

Documents

What are the required documents ?

Nil.

Delay

What is the delay to obtain the right to commercialize ?

Nil.

Display in store

Is there some specific rules on the way to display the product in store ?

Display on internet

Is there some specific mentions to display the product on internet ?

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

Comments

Comments

Under the Consumer Protection Act, sales or long-term leases of cellular telephones, laptop computers, and electronic pads carry with them a warranty of good working order (in force on 2026-10-05)

Administration

What is the administration in charge of commercialization ? Name and address ?

The Minister can prohibit the manufacture, importing, distribution, lease, offering for sale, selling or possessing of any radio apparatus, or equipment or device, or component of any equipment or device, or any class of radio apparatus, or equipment or device, or component of any equipment or device.

Documents